SPONSOR: Rep. Romer

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE AMENDMENT NO. 1
TO
HOUSE BILL NO. 33

AMEND House Bill No. 33 by deleting lines 19 through 26 in their entirety and substituting in lieu thereof the following:

"(e) Conduct that constitutes a violation of § 4764 of this title that is alleged to have occurred within the City of Newark by persons 18 years old or older may by brought initially before the Alderman's Court of the City of Newark pursuant to an ordinance of the City of Newark that criminalizes conduct that constitutes a violation of § 4764(b) or (d) or that imposes a civil penalty for conduct that constitutes a violation of § 4764(c).

(1) The Alderman's Court of the City of Newark and the Court of Common Pleas have concurrent jurisdiction over violations of an ordinance of the City of Newark that criminalizes conduct that constitutes a violation of § 4764(b) and (d) of this title that are committed within the City of Newark by persons 18 years of age and older.

(2) The Alderman's Court of the City of Newark and the Justice of the Peace Court have concurrent jurisdiction over violations of an ordinance of the City of Newark that imposes a civil penalty for conduct that constitutes a violation of § 4764(c) of this title that are committed within the City of Newark by persons 18 years of age and older.".

SYNOPSIS

This amendment to House Bill No. 33 clarifies that the Alderman's court may hear cases brought under an ordinance of the City of Newark that criminalizes or imposes a civil penalty for conduct that would constitute a crime or civil violation under Title 16, Section 4764 of the Delaware Code when the person charged is 18 years of age or older. This amendment further clarifies that the Alderman's Court and Court of Common Pleas shall have concurrent jurisdiction of crimes charged under a Newark ordinance criminalizing conduct that would constitute a violation of Section 4764(b) or (d), and the Alderman's Court and Justice of the Peace Court shall have concurrent jurisdiction over civil violations charged under a Newark ordinance imposing a civil penalty for conduct that would constitute a violation of Section 4764(c).

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